

The Family Court of the State of Delaware
In and For ☐ New Castle County ☐ Kent County ☐ Sussex County
PETITION FOR EXPUNGEMENT OF ADULT RECORD

Petitioner Bartholomew Nkemdirim Vandergrift-Ashworth Jr.	ATTORNEY GENERAL New Castle County
Street Address (including Apt) 2604 Old Capitol Trail, Building 7, Unit 219	820 N. French Street Wilmington, DE 19801
P.O. Box Number Box 2407	Kent County 102 W. Water Street Dover, DE 19904
City/State/Zip Code Wilmington, DE 19808-4417	Sussex County 114 East Market Street Georgetown, DE 19947
DOB 1949-01-30	Telephone # (302) 555-0138 ext. 22
Email Address bvandergrift@example.test	
Attorney Name	
Interpreter needed? ☒ Yes ☐ No	
Language Spanish	

Crim. Case No. N19-11-0032-01
Civil Petition No.

Pursuant to 10 *Del. C.* § 1025 and 11 *Del. C.* § 4374, Bartholomew Nkemdirim Vandergrift-Ashworth Jr. (Petitioner), hereby petitions Family Court for expungement of the following case(s), and the charge or set of charges related to that case(s), from his or her criminal record. Each charge is listed separately below; any additional charges are listed on Form 281E.

Case ID # or Criminal Case #	Charge	Offense Date	Disposition Date	Disposition
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-01-14	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-03-22	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-07-09	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-11-02	2016-03-18	Dismissed

The following information MUST be completed for the Court to consider the petition

☐ The continued existence and possible dissemination of criminal records relating to Petitioner causes, or may cause, circumstances which constitute a manifest injustice to the Petitioner.

You must explain how the Petitioner is negatively affected by the continued existence and possible dissemination of the criminal records (attach additional pages if necessary):

WHEREFORE, Petitioner requests that this Court enter an Order directing:

- That all law-enforcement agency records and court records relating to the above referenced case(s), and the charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
- That copies of this Court's Order be delivered to the Petitioner, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
- That the Department of Justice and the Courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to the public inspection or disclosure.
- That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged, or convicted in the above reference case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).

The Petitioner hereby declares that the above information is true and correct to the best of his or her ability.

Petitioner's Signature

Sworn to and subscribed before me this _____ day of _____, _____

Clerk of Court/Notary Public

Date

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

Petitioner
Bartholomew Nkemdirim Vandergrift-Ashworth Jr.
Street Address (including Apt)
2604 Old Capitol Trail, Building 7, Unit 219
P.O. Box Number
Box 2407
City/State/Zip Code
Wilmington, DE 19808-4417

File No.

The charges listed below are a continuation of the Petitioner's list of charges on the Petition for Expungement of Adult Record to which this form is attached.

[illegible]

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

ORDER GRANTING EXPUNGEMENT OF ADULT RECORD

Petitioner Bartholomew Nkemdirim Vandergrift-Ashworth Jr.		ATTORNEY GENERAL ☐ New Castle County 820 N. French Street Wilmington, DE 19801 ☐ Kent County 102 W. Water Street Dover, DE 19904 ☐ Sussex County 114 East Market Street Georgetown, DE 19947	Crim. Case No(s). N19-11-0032-01
Street Address 2604 Old Capitol Trail, Building 7, Unit 219			
P.O. Box Number Box 2407			Petition Number
City/State/Zip Code Wilmington, DE 19808-4417			
D.O.B. 1949-01-30	Telephone # (302) 555-0138 ext. 22		
Attorney Name:			

Whereas, the Petitioner filed a Petition seeking to have all law enforcement agency records and Court records related to the below case(s), and charge or set of charges related to that case(s), expunged pursuant to 10 *Del. C.* § 1025 and 11 *Del. C.* § 4374;

Case # or Criminal Case #	Charge	Offense Date	Disposition Date	Disposition
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-01-14	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-03-22	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-07-09	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-11-02	2016-03-18	Dismissed

Whereas, it appears that the Attorney General was served with the Petition and provided its response to the Court; and

Whereas, the Court having considered the Petition, the Attorney General's response, and, if filed, the Petitioner's reply thereto, finds that the continued existence and possible dissemination of information relating to the referenced case(s), and charge or set of charges related to that case(s), causes or may cause circumstances which constitute a manifest injustice to the Petitioner.

NOW THEREFORE, IT IS ORDERED that the Petition be **GRANTED**.

IT IS FURTHER ORDERED:

1. That all law-enforcement agency records and court records relating to the above referenced case(s), and charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
2. That copies of this Court's Order be delivered to the Petitioner or Petitioner's Attorney, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
3. That the Department of Justice and the Courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to public inspection or disclosure.
4. That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged or convicted in the above referenced case(s), and charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).
5. Other:

So Ordered this Date: _____

Judge/Commissioner (Print)

Judge/Commissioner

CC: ☐ Defendant ☐ DAG ☐ Attorney _____

Delaware Family Court — Form 281 / Form 283 packet assembly sheet

Discretionary expungement of an adult record · 11 Del. C. § 4374(c)

What this sheet is

This is an assembly and completion sheet for the official Family Court Form 281 petition and required Form 283 proposed order. It is not a court form, a filing, legal advice, or an approval. Form 283 is copied from page 15 of the held Form 1021IP source. The official forms' county boxes, manifest-injustice assertion, Petition Number, decision, signature and jurat remain blank for the person or court who owns them.

Components and order

1. de_discretionary_family_court-primary-filing-1: Form 281, Petition for Expungement of Adult Record. 2. de_discretionary_family_court-continuation-2: Form 281E, conditional when charges exceed the petition table. 3. de_discretionary_family_court-proposed-order-4: Form 283, Order Granting Expungement of Adult Record, copied from held Form 1021IP page 15. 4. de_discretionary_family_court-cover-sheet-3: this required assembly sheet. The participant supplies the SBI cover letter and certified criminal history externally; they are assembled with the official forms in the filing order stated in the current instructions.

Before filing

Obtain the certified criminal history dated within 45 days through IdentoGo, service code 27S23V, at about \$72; the court shall summarily reject a petition without it. Do not assume the packet confirms eligibility. Complete and cross-check every charge from that history, confirm every charge and conviction sought was disposed of in Family Court, use the county of the most recent termination, complete the manifest-injustice explanation in your own words, and sign and swear the petition before a clerk of court or notary. Verify the proposed order's party and charge information against the final filing packet.

Fee, service and handoff

The Family Court Schedule of Assessed Costs effective July 20, 2026 lists Expungement of Criminal Adult or Juvenile Record at \$0.00, with no archive fee and no court security assessment. The specific page 2 expungement entry controls the generic page 3 security list, which still names Petition for Expungement of Adult Record. The separate certified-history acquisition cost is external and unresolved; it is not the Family Court filing fee. Under § 4372(l), outstanding conviction fines or fees unpaid for reasons other than wilful noncompliance may be waived or converted to a civil judgment when the person is otherwise eligible. This is separate from the \$0.00 filing charge and does not waive restitution. Under 85 Del. Laws c. 142, § 10, the § 4374(e) victim-contact reference is contact under § 9414(a) of Title 11; the § 9401 victim definition remains unchanged. The petitioner serves the Attorney General, who may object or answer within 120 days; if the Attorney General opposes, the petitioner has 30 days to respond. If the Attorney General objects, a victim opposes, the court sets a hearing, or a required fact is contested, stop self-help completion and obtain case-specific help.

Held facts

Fixture boundary carries the participant name, date of birth, street address, city/state/ZIP, telephone, criminal case number and supplied charges shown on the official forms. The source records and exact source bytes govern this packet; no court-assigned date, Petition Number, signature, judicial finding or approval is invented.